

Palau International Ship Registry



Europe Head Office
Piraeus, 18536, Greece
5, Sachtoura Street
6th floor
T: +30 210 4293500
F: +30 210 4293505
info@palaureg.com

USA Head Office
The Woodlands, TX, 77380
9595 Six Pines Drive,
Suite 8210, Office 277
T: +1 832 631 6061
F: +1 832 631 6001
www.palaureg.com

MARINE CIRCULAR 146.1

To: RECOGNIZED ORGANIZATIONS, SHIPOWNERS, MANAGERS, OPERATORS, MASTERS, DEPUTY REGISTRARS, AND FLAG STATE INSPECTORS

Subject: PROCEDURES FOR TRANSFER OF CLASS AND STATUTORY CERTIFICATION

1. Reference

- 1.1 Recognized Organizations Code (RO CODE),
- 1.2 IACS PR1A Procedure for Transfer of Class
- 1.3 IMO MSC-MEPC.5/Circ.2, 'Guidelines for Administrations to ensure the adequacy of Transfer of class-related matters between Recognized Organizations'

2. Definitions

- 2.1 "Gaining" recognized organization means a recognized organization which accepts a ship as meeting its requirements, only after all overdue surveys, overdue recommendations or overdue conditions of class-related matters previously issued against the ship have been completed by or as specified by the losing recognized organization.
- 2.2 "Losing" recognized organization means the recognized organization from which class-related matters are being transferred. In the case of ships accepted as meeting the class-related requirements by more than one recognized organization, the losing recognized organization means all recognized organizations from which class-related matters are being transferred

3. Introduction

- 3.1 The aim of the present circular is to provide guidelines to ensure the adequacy of transfer of class-related matters, between recognized organizations (ROs) for ships registered under Palau Flag.

4. Applicability

- 4.1 The present Marine Circular applies to all commercial ships and yachts registered under Palau Flag.

5. Information

- 5.1 The RO Code indicates that all ROs shall establish and implement appropriate common requirements and procedures concurring statutory certification and provides



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requirements to be fulfilled by the losing as well as gaining ROs, in cases of transfer of the certification.

5.2 In all cases of transfer of the certification of a Palauan registered ship, the Recognized Organizations are required to implement the provisions of the RO Code, as well as the procedures OR guidelines, as refer below:

IACS PR1A, 'Procedure for Transfer of Class'

IMO MSC-MEPC.5/Circ.2, 'Guidelines for Administrations to ensure the adequacy of transfer of class-related matters between Recognized Organizations'

5.3 The losing recognized organization shall, without undue delay, provide the gaining recognized organization access to the history file of the ship including:

- any overdue surveys
- any overdue recommendations and overdue conditions of class
- operating conditions issued against the ship
- operating restrictions issued against the ship
- technical information, drawings, plans and documents as may be requested
- current survey status of class-related matters including among others, info as indicated above

5.4 The gaining recognized organization, shall immediately upon receipt of the information as per 5.3, communicate same to PISR, giving the opportunity to Palau Ship Registry Administrator to provide additional instructions/requirements, if any.

5.5 It is at the discretion of the PISR not to authorize the issuance of the statutory certificates by the gaining RO, in case of:

- until all surveys have been satisfactorily completed
- until all overdue surveys and all overdue recommendations/conditions of class previously issued against the subject ship as specified to the owner by the losing recognized organization, have been completed and rectified OR same have been under the consent of PISR, agreed to be closed in a specific time period
- until all information as per 5.3 to be provided to PISR

6. Suspended or Cancelled RO's

6.1 Ship-owners are advised that a vessel holding certificates issued by a RO that has been cancelled or suspended by Palau Ship Registry Administrator, must as soon as possible contact another RO dully authorized by this Administrator to begin with the replacement of the certificates issued by the previous RO. The certificates issued by a suspended or cancelled RO will remain valid until the date of the next annual/intermediate/periodical endorsement or renewal, provided that all previous annual/intermediate/periodical endorsements have been carried out in due time and within the correspondent time frame. The new certificates issued by the gaining RO will have the same expiration date as the previous certificates.



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1. Statutory Certificates that do not require an expiration date will be re-issued by the gaining RO.
2. Plans and booklets required for the issuance of statutory certificates will have to be re-approved by the gaining RO.

7. Communication to the Flag

7.1 The gaining recognized organization shall establish appropriate communication processes with the PISR, immediately after completion of surveys and issuance of statutory certificates, that, inter alia, address the following:

- Narrative report along with the imposed deficiencies, if any, and copies of the issued statutory certificates
- information specified by the flag State in terms of authorization,
- classification of ships (assignments of class, changes and withdrawals), as applicable
- cases where a ship did not in all respects remain fit to proceed to sea without danger to the ship or persons on board or presenting unreasonable threat of harm to the marine environment
- information on all overdue surveys, overdue recommendations or overdue conditions of class, operating conditions or operating restrictions issued against their classed ships

8. Contact

8.1 For further questions, please do not hesitate to contact the Technical Department PISR at technical@palaureg.com

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